regime accepted the need to take similar action, but Pakistan was not prepared to part with its proxies.

Lashkar was forewarned that it would soon be banned, and engineered a split with MDI. According to the press release issued the day after the split, Lashkar was now strictly a 'Kashmiri militant organization' and its newly elected leader was Maulana Abdul Wahid al-Kashmiri who would head the General Council with Zaki-ur Rehman Lakhvi as the Supreme Commander.[68] At a press conference announcing the split, Saeed declared that Lashkar was no longer active in Pakistan, having shifted all of its offices and activities to Pakistan-administered Kashmir.[69] In addition, MDI was dissolved and replaced by the Jamaat-ul-Dawa [JuD]. This was the organization Hafiz Saeed originally founded in 1985 and it still existed as a registered charity.[70] Saeed resigned as Lashkar's amir and assumed control of JuD, which the press release referred to as an 'organization for preaching of Islam, politics, [and] social work.' It promised to 'continue to work for the support of refugees and freedom fighters and countering Indian propaganda.'[71] Yahya Mujahid, who was one of the original founders of MDI and became a spokesman for JuD, asserted at the time, 'we handed Lashkar-e-Taiba over to the Kashmiris in December 2001. Now we have no contact with any jihadi organization. We, the Jamaat-ul-Dawa, are only preachers.'[72]

In reality, the separation was entirely cosmetic as was the name change. JuD's spokesperson for international media Abdullah Muntazir admitted that MDI and JuD were one and the same saying, 'only the word Markaz was replaced with Jamaat, otherwise it's the same organization.'[73] Hafiz Saeed, Zafar Iqbal, Hafiz Abdul Rehman Makki and Zaki-ur Rehman Lahkvi remained in charge, with al-Kashmiri as a quasi-figurehead. Further, Lakhvi and al-Kashmiri were both on the JuD 'executive board,' which met to decide high-level policy.[74] The departments and organizational structure remained unchanged. The purpose of the split and name change was to remove the state's legal ability, and hence its legal obligation, to go after the organization's assets. A high-ranking JuD official close to Saeed admitted the separation was undertaken at the ISI's direction in order to create this loophole.[75] Whereas MDI had been overtly geared toward supporting Lashkar's jihad, however, with JuD this was more covert. Although MDI had its own operations and networks, its identity was as